

OPERATING AGREEMENT OF BRISCOE CAPITAL, LLC

A Texas Limited Liability Company

How to use this document: This is the consolidated operating agreement for Briscoe Capital, LLC. Your father is not a Member of this Company and holds no Membership Interest here. He is designated as Senior Advisor and holds enforceable consent and consultation rights directly in this Agreement. His equity, if any, exists only at the Acquisition Subsidiary level, deal by deal, governed by each subsidiary's own operating agreement. Every bracketed item still needs a number, date, or final choice.

This is not a finished legal document. Have Texas counsel review it before anyone signs, particularly Article V (Senior Advisor consent rights and Ryan's springing admission mechanism, Section 5.6), Article X (buyout mechanics), and the Senior Advisor's acknowledgment signature below.

TABLE OF CONTENTS

Article I — Formation

Article II — Purpose

Article III — Members and Membership Interests

Article IV — Capital Contributions

Article V — Management

Article VI — Meetings and Voting

Article VII — Allocations and Distributions

Article VIII — Books, Records, and Tax Matters

Article IX — Transfer of Membership Interests

Article X — Withdrawal and Buyout

Article XI — Lender and Guaranty Matters

Article XII — Indemnification and Liability

Article XIII — Dissolution

Article XIV — Miscellaneous

Signatures

Exhibit A — Schedule of Members, Capital Contributions, and Membership Interests

Exhibit B — Senior Advisor Scope of Engagement

Summary of Structural Changes / Open Items

ARTICLE I — FORMATION

1.1 Formation. Briscoe Capital, LLC (the “Company”) was formed as a Texas limited liability company upon the filing of its Certificate of Formation with the Texas Secretary of State on [DATE].

1.2 Name. The name of the Company is Briscoe Capital, LLC.

1.3 Registered Agent and Office. The Company's registered agent is [NAME], located at [ADDRESS]. The principal office of the Company is [ADDRESS].

1.4 Term. The Company shall continue perpetually unless dissolved in accordance with Article XIII.

ARTICLE II — PURPOSE

2.1 Purpose. The Company is organized to acquire, hold, and manage equity interests in operating subsidiaries, real estate holdings, and other investments across any sector or industry, and to engage in any other lawful business activity as the Equity Members may determine.

2.2 Subsidiary Structure. The Members anticipate that each business acquired by the Company will be held through a separate, single-purpose subsidiary entity (“Acquisition Subsidiary”) wholly or majority owned by the Company, in order to isolate liability between operating businesses.

2.3 Subsidiary Equity Participation. A non-Member, including the Senior Advisor designated in Section 3.2(c), may contribute capital to one or more Acquisition Subsidiaries on a deal-by-deal basis, receiving equity in that Acquisition Subsidiary without acquiring any Membership Interest in the Company. Each such arrangement shall be approved as a Major Decision under Section 5.5 and governed by that Acquisition Subsidiary's own operating agreement or equity participation agreement. The Senior Advisor's protections with respect to any Acquisition Subsidiary in which he holds an interest are set forth in Section 5.4(e).

ARTICLE III — MEMBERS AND MEMBERSHIP INTERESTS

3.1 Initial Members. The Members of the Company, their initial capital contributions, and their Membership Interests are set forth on Exhibit A.

3.2 Classes of Membership.

(a) Equity Members. Dylan Briscoe, Bradley Briscoe, and Ryan Briscoe (each an “Equity Member” and together the “Equity Members”) are intended to hold equal Membership Interests as set forth on Exhibit A. Each Equity Member holds full consent rights over Major Decisions under Section 5.5, regardless of management status under this Section 3.2.

(b) Managing Members. Dylan Briscoe and Bradley Briscoe are “Managing Members” as of the Effective Date and hold management authority under Article V. Ryan Briscoe is a Non-Managing Equity Member as of the Effective Date and shall automatically become a Managing

Member, with full authority equal to the other Managing Members, upon the Trigger Event defined in Section 5.6.

(c) Senior Advisor. Gordon Briscoe (the “Senior Advisor”) is not a Member of the Company and holds no Membership Interest. The Senior Advisor holds the rights set forth in Section 5.4 and Section 5.7 by virtue of his role as financial and strategic advisor and potential Acquisition Subsidiary equity contributor. The Senior Advisor acknowledges these rights and the related obligations by his acknowledgment signature at the end of this Agreement. The Senior Advisor’s rights under this Agreement are personal and may not be transferred.

3.3 No Personal Liability. Except as otherwise provided in this Agreement or by separate written guaranty, no Member shall be personally liable for the debts, obligations, or liabilities of the Company solely by reason of being a Member.

3.4 Admission of New Members. No person may be admitted as a new Member without the unanimous written consent of all Equity Members. Ryan Briscoe's transition from Non-Managing Equity Member to Managing Member under Section 5.6 is not an admission of a new Member and does not require consent under this Section, since Ryan is already a Member as of the Effective Date.

ARTICLE IV — CAPITAL CONTRIBUTIONS

4.1 Initial Contributions. Each Member's initial capital contribution is set forth on Exhibit A. Contributions shall be made in cash, by wire or check, with documentation retained for lender and tax purposes.

4.2 Additional Capital Contributions. If the Managing Members determine that additional capital is needed (e.g., for a new acquisition's equity injection requirement), they shall deliver written notice to all Members specifying the amount needed and each Member's pro rata share based on Membership Interest. Each Member shall have *[15]* days to fund their share.

4.3 Failure to Contribute. If a Member fails to fund a properly noticed capital call, the other Members may (a) advance the shortfall as a loan to the non-contributing Member bearing interest at *[the Wall Street Journal Prime Rate plus 2% — suggested default]*, or (b) treat the failure as a dilution event, recalculating Membership Interests to reflect the actual capital contributed by each Member.

4.4 No Interest on Contributions. No Member shall be entitled to interest on capital contributions.

4.5 Capital Accounts. The Company shall maintain a capital account for each Member in accordance with standard partnership tax accounting principles.

ARTICLE V — MANAGEMENT

5.1 Manager-Managed. The Company shall be manager-managed. Management authority is vested in the Managing Members identified in Section 3.2(b), as that group expands under Section 5.6.

5.2 Ordinary Course Authority. Any Managing Member, acting alone, may bind the Company in matters in the ordinary course of business, including day-to-day operations of the Company and its Acquisition Subsidiaries, up to \$[25,000 — *suggested starting point; adjust to the size of your first acquisition*] in any single transaction.

5.3 Joint Managing Member Approval. The following actions require the written approval of a majority of the Managing Members then serving (both, while there are two; at least two of three once Ryan is admitted under Section 5.6):

- Entering into any contract or obligation exceeding \$[100,000 — *suggested starting point*]
- Hiring or terminating senior management at any Acquisition Subsidiary
- Approving the annual budget for any Acquisition Subsidiary

5.4 Senior Advisor Rights.

(a) Observer Seat. The Senior Advisor shall have the right to attend all Member meetings in a non-voting, non-Member capacity and to receive all notices, agendas, and written materials distributed to the Equity Members in connection with those meetings. The Senior Advisor may speak at any meeting but may not vote or move any matter to a vote.

(b) Information Rights. The Senior Advisor shall receive all financial reporting delivered to Equity Members under Article VIII on the same schedule and in the same format as the Equity Members receive it.

(c) Consultation Right — All Major Decisions (Tier 2). Before any vote on a Major Decision under Section 5.5 that does not independently trigger the Senior Advisor's hard consent right under Section 5.4(d), (e), or Section 5.7, the Managing Members shall give the Senior Advisor at least [10] days' prior written notice and a reasonable opportunity to comment in writing, drawing on his financial and operating background described in Exhibit B. The Managing Members shall confirm in writing that the Senior Advisor's input was considered before the vote is recorded. The Senior Advisor's input does not require any particular outcome and does not extend or condition the timing of the vote beyond the notice period.

(d) Hard Consent — Deals Involving Senior Advisor Capital or Guaranty (Tier 1). The Company shall not proceed with any acquisition, formation of a new Acquisition Subsidiary, or incurrence of debt in connection with which the Senior Advisor is being asked to contribute capital or provide a personal guaranty, without the Senior Advisor's prior written consent. This consent right applies to the specific transaction only and does not give the Senior Advisor a general right to block acquisitions or financings in which he is not personally involved.

(e) Hard Consent — Protection of Subsidiary Equity (Tier 1). The Company shall not take, and shall use commercially reasonable efforts to cause each relevant Acquisition Subsidiary not to take, any action that would dilute, impair, or eliminate the Senior Advisor's equity interest in any Acquisition Subsidiary in which he then holds an interest, without the Senior Advisor's prior written consent. For the avoidance of doubt, this includes any issuance of new equity in that subsidiary, any merger or restructuring of that subsidiary, and any sale of all or substantially all of that subsidiary's assets.

(f) No Membership; No General Management Authority. The rights in this Section 5.4 are contractual rights of a non-Member. The Senior Advisor is not a Member of the Company, has

no authority to bind the Company or any Acquisition Subsidiary to any obligation, and shall not be treated as a Member for any purpose, including without limitation tax reporting, SBA ownership disclosure, or lender qualification, except to the extent that his equity in an individual Acquisition Subsidiary independently triggers such treatment at that subsidiary level.

5.5 Major Decisions — Unanimous Consent of All Equity Members Required.

Notwithstanding Sections 5.2–5.3, the following require the unanimous written consent of all Equity Members (Dylan, Bradley, and Ryan), regardless of whether Ryan has yet become a Managing Member under Section 5.6:

- Acquiring a new business or forming a new Acquisition Subsidiary
- Incurring debt secured by an SBA guaranty, or any debt exceeding \$[AMOUNT]
- Selling, transferring, or encumbering a material asset of the Company
- Admitting a new Member or issuing new Membership Interests
- Amending this Agreement
- Dissolving the Company

5.6 Springing Admission of Ryan Briscoe as Managing Member.

(a) Trigger Event. Ryan shall automatically be admitted as a Managing Member, with full authority equal to the other Managing Members under this Article V, upon the earliest of: (i) Ryan's completion of, withdrawal from, or other cessation of enrollment in *[Ryan's graduate program]*, evidenced by written notice from Ryan to the other Members; (ii) *[BACKSTOP DATE — pick an actual calendar date tied to Ryan's expected program length, so this doesn't depend solely on his own notice]*; or (iii) the unanimous written consent of the then-current Managing Members to admit Ryan earlier.

(b) No Further Consent Required. Admission of Ryan as a Managing Member under this Section 5.6 is not the admission of a new Member under Section 3.4 and is not an amendment requiring consent under Section 14.2, because Ryan is already a Member as of the Effective Date. This Section governs only the springing of his management authority.

(c) Interim Status. Until the Trigger Event, Ryan is a Non-Managing Equity Member and holds the rights described in Section 5.5, notwithstanding that his Membership Interest is otherwise equal to that of the Managing Members.

(d) Guaranty Exposure Independent of Management Status. The Members acknowledge that Ryan's Membership Interest, if 20% or more, independently requires Ryan to execute a personal guaranty in connection with SBA-guaranteed financing under Section 11.1, regardless of whether he has yet become a Managing Member under this Section.

5.7 Hard Consent — Senior Advisor Guaranty Exposure (Tier 1). The Company shall not incur any new SBA-guaranteed or other secured debt that increases the Senior Advisor's personal guaranty exposure beyond the guaranty or guaranties he has then already executed, without the Senior Advisor's prior written consent. This right is personal to the Senior Advisor and exists solely to protect his guaranty exposure; it does not extend to any other decision under this Agreement and does not give the Senior Advisor a right to block debt that does not increase his exposure.

ARTICLE VI — MEETINGS AND VOTING

6.1 Voting Rights. Except as otherwise provided in Article V, voting power on matters properly submitted to a vote of the Members is proportional to each Member's Membership Interest percentage. The Senior Advisor is not a Member and has no voting rights, but holds the consent and consultation rights described in Sections 5.4 and 5.7.

6.2 Meetings. Members shall meet at least *[quarterly — suggested default given active acquisition activity]*, with *[7]* days' written notice. Meetings may be held by phone or video conference.

6.3 Action Without Meeting. Any action requiring Member approval may be taken without a meeting by written consent signed by the Members holding the requisite voting threshold for that action.

ARTICLE VII — ALLOCATIONS AND DISTRIBUTIONS

7.1 Allocation of Profits and Losses. Profits and losses shall be allocated among the Members in proportion to their Membership Interests.

7.2 Tax Distributions. The Managing Members shall use reasonable efforts to distribute, at least annually, an amount sufficient for each Member to pay estimated income tax attributable to the Company's allocated income, to the extent cash is available and not restricted by lender covenants.

7.3 Discretionary Distributions. Beyond tax distributions and any guarantor reimbursement required under Section 11.4, the timing and amount of further distributions is within the discretion of the Managing Members, subject to maintaining adequate working capital and complying with any restrictions imposed by SBA loan documents at the Acquisition Subsidiary level.

7.4 Lender Restrictions Control. Notwithstanding the foregoing, no distribution shall be made if prohibited by, or in violation of, any covenant in an SBA-guaranteed loan agreement binding the Company or an Acquisition Subsidiary.

ARTICLE VIII — BOOKS, RECORDS, AND TAX MATTERS

8.1 Books and Records. The Company shall maintain complete books and records at its principal office, available for inspection by any Member on reasonable notice.

8.2 Fiscal Year. The Company's fiscal year is the calendar year.

8.3 Tax Status. The Company intends to be taxed as a partnership (or, if elected, an S-corporation) for federal income tax purposes. *[Confirm classification with your CPA before filing — this affects how distributions and the equity injection are documented.]*

8.4 Partnership Representative. Dylan Briscoe is designated as the Company's Partnership Representative under the IRS centralized partnership audit rules.

ARTICLE IX — TRANSFER OF MEMBERSHIP INTERESTS

9.1 General Restriction. No Member may sell, assign, pledge, or otherwise transfer all or any part of their Membership Interest without the prior written consent of the other Members, except as set forth below.

9.2 Right of First Refusal. If a Member receives a bona fide third-party offer to purchase their interest, they must first offer it to the other Members on the same terms. The other Members have [30] days to accept.

9.3 Permitted Transfers. Transfers to a revocable living trust for estate planning purposes, or to a Member's spouse or lineal descendants, are permitted without triggering the right of first refusal, provided the transferee agrees in writing to be bound by this Agreement.

ARTICLE X — WITHDRAWAL AND BUYOUT

10.1 Voluntary Withdrawal. A Member may withdraw from the Company by giving [90] days' written notice. Withdrawal does not dissolve the Company.

10.2 Triggering Events. A Member's interest becomes subject to mandatory buyout upon: death, permanent incapacity, bankruptcy, divorce resulting in a court awarding any portion of the interest to a non-Member, or removal of a Managing Member for cause (defined as fraud, gross negligence, or material breach of this Agreement).

10.3 Valuation Method. The buyout price for a withdrawing or removed Member's interest shall be determined by *[suggested default: an independent business appraiser selected by mutual agreement, or if the Members cannot agree, each Member selects an appraiser and those two select a third. A single trailing-EBITDA-multiple formula is a worse fit here than for a single operating business, since the Company will likely hold several Acquisition Subsidiaries at different stages and multiples.]*

10.4 Payment Terms. The buyout amount shall be paid *[suggested default: via a promissory note with a 5-year term, interest at the Prime Rate in effect at the time of the triggering event, given that most Company capital will be illiquid and tied up in Acquisition Subsidiary equity. A lump-sum requirement within 90 days could force a fire sale of a subsidiary to fund the buyout.]*

ARTICLE XI — LENDER AND GUARANTY MATTERS

11.1 Personal Guarantees. Any Member holding 20% or more of the Membership Interests in the Company or an Acquisition Subsidiary, or any Member otherwise required by a lender, shall execute a personal guaranty in connection with SBA-guaranteed or other financing as requested by the lender. See Section 5.6(d) regarding how guaranty obligations interact with Ryan's springing management authority.

11.2 Compliance with Loan Covenants. The Company and each Acquisition Subsidiary shall comply with all affirmative and negative covenants in any SBA loan documents, including restrictions on additional debt, distributions, and changes in ownership without lender consent.

11.3 Ownership Certification. Each Member certifies they are a United States citizen or lawful permanent resident, and shall promptly notify the other Members and any relevant lender of any change in that status.

11.4 Guarantor Reimbursement. If any Member is required to make payment to a lender under a personal guaranty executed in connection with Company or Acquisition Subsidiary financing, the Company shall reimburse that Member for the amount paid, to the extent of funds legally available for distribution and not restricted by lender covenants, before making any further discretionary distributions under Section 7.3. This right is subordinate to all obligations owed to the Company's and any Acquisition Subsidiary's third-party lenders.

11.5 Non-Member Advisory and Guaranty Arrangements. The Company may enter into a separate written agreement with a non-Member, including an immediate family member of an Equity Member, providing for compensation in exchange for a personal guaranty of Company or Acquisition Subsidiary debt and/or advisory services, on terms approved by a majority of the Managing Members. Payments under any such agreement are an authorized Company expense and do not make the recipient a Member or grant the recipient any voting, consent, information, or distribution rights under this Agreement. A guaranty provided on this basis, where not required by SBA rule, is typically treated by the lender as a supplemental guaranty rather than an owner guaranty.

ARTICLE XII — INDEMNIFICATION AND LIABILITY

12.1 Limitation of Liability. No Managing Member shall be liable to the Company or other Members for actions taken in good faith on behalf of the Company, except for fraud, gross negligence, or willful misconduct.

12.2 Indemnification. The Company shall indemnify each Managing Member against losses, claims, and expenses incurred in connection with Company business, to the fullest extent permitted by Texas law.

12.3 Senior Advisor Indemnification. The Company shall indemnify the Senior Advisor against losses, claims, and expenses incurred in connection with advice given in good faith within the scope of Exhibit B, to the same extent provided in Section 12.2. This Section does not extend to any matter arising from the Senior Advisor's personal guaranty obligations under Article XI, which are governed separately by Section 11.4.

ARTICLE XIII — DISSOLUTION

13.1 Dissolution Events. The Company shall dissolve upon: (a) unanimous written consent of all Equity Members, (b) entry of a judicial decree of dissolution, or (c) any other event requiring dissolution under Texas law.

13.2 Winding Up. Upon dissolution, the Managing Members (or a Member appointed by majority vote) shall wind up the Company's affairs, liquidate assets, pay creditors, and distribute remaining proceeds to Members in proportion to their capital account balances.

ARTICLE XIV — MISCELLANEOUS

14.1 Governing Law. This Agreement is governed by the laws of the State of Texas.

14.2 Amendment. This Agreement may be amended only by unanimous written consent of all Equity Members. (Section 5.6's springing mechanism is self-executing and is not an amendment — see Section 5.6(b).)

14.3 Entire Agreement. This Agreement constitutes the entire agreement among the Members regarding the Company and supersedes all prior agreements or understandings.

14.4 Severability. If any provision is held invalid, the remainder of this Agreement remains in full force and effect.

14.5 Dispute Resolution. *[Suggested default: Disputes shall be resolved by mediation, and if unresolved, binding arbitration in Dallas County, Texas. Litigation in the Dallas County courts is the alternative if you'd rather preserve a public record and full discovery rights.]*

14.6 Counterparts. This Agreement may be executed in counterparts, including electronically.

SIGNATURES

IN WITNESS WHEREOF, the undersigned have executed this Agreement as of the date(s) set forth below.

Dylan Briscoe, Managing Member

Date: _____

Bradley Briscoe, Managing Member

Date: _____

Ryan Briscoe, Non-Managing Equity Member (Managing Member upon the Section 5.6 Trigger Event)

Date: _____

ACKNOWLEDGED AND AGREED by the Senior Advisor (not a Member):

By signing below, the Senior Advisor acknowledges having read this Agreement, agrees to be bound by the obligations applicable to the Senior Advisor under Sections 5.4, 5.7, 7, 11, and 12.3, and accepts the rights granted to the Senior Advisor under those Sections.

Gordon Briscoe, Senior Advisor (non-Member)

Date: _____

EXHIBIT A — Schedule of Members, Capital Contributions, and Membership Interests

Note: The Senior Advisor (Gordon Briscoe) holds no Membership Interest in the Company and does not appear in this Exhibit. His rights are set forth in Sections 5.4 and 5.7. Any equity he holds in individual Acquisition Subsidiaries is reflected in those subsidiaries' own governing documents, not here.

Member	Role	Initial Capital Contribution	Membership Interest %
Dylan Briscoe	Managing Member	\$[_____]	[_____]%
Bradley Briscoe	Managing Member	\$[_____]	[_____]%
Ryan Briscoe	Non-Managing Equity Member (Sec. 5.6)	\$[_____]	[_____]% (intended equal to Dylan and Bradley)
Total		\$[_____]	100%

EXHIBIT B — Senior Advisor Scope of Engagement

This Exhibit may be updated by written agreement of the Senior Advisor and the Managing Members without constituting an amendment to this Agreement under Section 14.2.

Role. Gordon Briscoe serves as financial and strategic Senior Advisor to the Managing Members, drawing on approximately a decade of CFO-level financial leadership experience. This is an advisory and contractual relationship governed by this Agreement; it is not a management role and does not bind the Company.

Cadence. *[e.g., a standing monthly review call, plus reasonable availability on deal diligence before any Major Decision vote — fill in what you actually intend.]*

Scope of Review. The financial reporting package delivered under Article VIII; deal diligence materials and financial models for prospective Acquisition Subsidiaries before a Section 5.5 vote or Section 5.4(d) consent request; annual budget and capital structure; *[other recurring items — add as applicable]*.

Compensation. Advisory fees, guaranty fees, and profit participation, if any, are governed by a separate Advisory and Guaranty Compensation Agreement between the Company and the Senior Advisor. Nothing in this Exhibit creates any compensation obligation.

Not a Title. “Senior Advisor” under this Agreement means what this Exhibit says he does. Keep it current as the relationship evolves; an undefined advisory role is harder to explain to a lender or enforce in court than a specific one.

SUMMARY OF STRUCTURAL CHANGES FROM YOUR DRAFT

1. Added Ryan Briscoe as a third Equity Member, holding equal Membership Interest to Dylan and Bradley from formation (Section 3.2(a), Exhibit A), consistent with bringing him in at formation rather than after closing.
2. Created a springing management mechanism (Section 5.6): Ryan starts as a Non-Managing Equity Member and automatically becomes a Managing Member on a defined trigger, his program ending or a backstop date, without needing a future vote.
3. Until the trigger, Ryan keeps full Major Decision consent rights under Section 5.5, the same as Dylan and Bradley, because he's an equity partner, not an advisor.
4. Removed the Advisory Member's (your father's) general Major Decision veto under the former Section 5.5 and replaced it with one narrow consent right tied specifically to his guaranty exposure (Section 5.7).
5. Changed Section 5.3's approval threshold from “both Managing Members” to “a majority of the Managing Members then serving,” so it works correctly whether there are two Managing Members or three.
6. Added Ryan Briscoe as a third Equity Member from formation (Section 3.2(a), Exhibit A). His management authority springs automatically on a defined trigger under Section 5.6 without a fresh vote.
7. Your father is designated as Senior Advisor (Section 3.2(c)) with rights embedded directly in this Agreement. He is not a Member, does not appear on Exhibit A, and his signature is an acknowledgment block, not a Member signature.
8. Tiered consent structure for the Senior Advisor (Section 5.4): Tier 1 hard consent rights where his personal resources are at stake (deals where he's asked to contribute capital or guarantee, actions that would impair his subsidiary equity, and new debt that increases his guaranty exposure under Section 5.7). Tier 2 consultation rights on all other Major Decisions, where the Members must give notice and record his input but can proceed. Observer seat at all Member meetings with speaking rights but no vote.
9. Added Section 2.3 for the subsidiary equity participation mechanism: Dad can hold equity deal-by-deal at the Acquisition Subsidiary level. Each deal requires its own subsidiary operating agreement. His Tier 1 consent right under 5.4(e) protects his subsidiary equity from dilution or elimination once he's in.
10. Broadened Section 2.1 purpose clause to remove the home services restriction, covering operating subsidiaries, real estate, and investments across any sector.
11. Added guarantor reimbursement right (Section 11.4) and Senior Advisor indemnification (Section 12.3) for good-faith advisory acts within the Exhibit B scope.
12. Section 5.3 approval threshold updated to majority of Managing Members then serving, so it works correctly at two and at three once Ryan springs.

OPEN ITEMS THAT STILL NEED REAL ANSWERS

1. Exhibit A ownership percentages. Needs actual capital figures.

2. Section 5.6(a)(ii) backstop date. Pick a hard calendar date tied to Ryan's expected program length.
3. Section 5.4(c) notice period [*10 days*]. Confirm this is workable given your deal timelines.
4. Exhibit B cadence and scope. Fill in what the three of you actually intend for how often Dad reviews and what he reviews. Don't leave it blank.
5. Valuation method (Section 10.3) and payment terms (Section 10.4). Defaulted to independent appraiser and 5-year promissory note. Confirm or override.
6. Dispute resolution (Section 14.5). Defaulted to mediation then binding arbitration in Dallas County.
7. Deadlock among three Managing Members once Ryan springs. Nothing in this draft addresses a 2-1 split outside the defined Major Decisions list. Needs a real conversation among the three of you.
8. The Senior Advisor's compensation (advisory fee, guaranty fee, profits participation) is a separate Advisory and Guaranty Compensation Agreement. That document is already drafted and travels with this one.
9. Each Acquisition Subsidiary where Dad contributes capital needs its own operating agreement. That's a separate document per deal, not something this Agreement covers.
10. Article XI will be marked up by lender's counsel once you're under an SBA term sheet.

Have Texas counsel review this before anyone signs.